

POWERS TO ARREST

California Security Guard Certification Course

A comprehensive BSIS-compliant training program covering the legal authority, limitations, liabilities, and professional responsibilities of California-licensed security officers in the exercise of citizen arrest powers.

COURSE OVERVIEW

What you will learn and how this course is structured

MODULE 1 — Introduction & Legal Framework

PTA Manual overview · BSIS authority · BPC §7583.7

MODULE 2 — Citizen Arrest Authority (PC §837)

Three conditions · Misdemeanor vs. felony · What triggers authority

MODULE 3 — Limitations & Prohibited Actions

What guards CANNOT do · Impersonation · Unlawful search

MODULE 4 — Security vs. Law Enforcement

Peace officer vs. private person · Jurisdiction limits

MODULE 5 — Liability — Personal & Employer

False arrest · False imprisonment · Civil & criminal exposure

MODULE 6 — Trespass & Property Law

Private property rights · Ejection authority · PC §602

MODULE 7 — Ethics, Communication & Documentation

Professional conduct · Use of force · Incident reporting

MODULE 8 — Emergency Response & Officer Safety

Medical emergencies · Situational awareness · Self-protection

MODULE 9 — Knowledge Check & Exam Prep

Review · 100% pass requirement · Certificate of Completion

LEARNING OBJECTIVES

Upon completion, participants will be able to:

Identify

the three lawful conditions under PC §837 that authorize a citizen's arrest

Distinguish

between security guard authority and peace officer authority under California law

Explain

the legal requirements for transferring custody to law enforcement under PC §847

Describe

personal and employer liability exposure from false arrest and unlawful detention

Apply

BSIS professional standards to real-world arrest, detention, and trespass scenarios

Demonstrate

proper documentation, communication, and incident reporting practices

MODULE 1

Introduction & Legal Framework

Understanding the statutory foundation of security officer authority under California law.

Duration: 20 minutes

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WHAT IS THE POWER TO ARREST?

Module 1 | Legal framework and BSIS authority | BPC §7583.7

THE BSIS MANDATE

- Business & Professions Code §7583.7 requires ALL security guards to complete Power to Arrest training before receiving a guard card
- Training uses the DCA Power to Arrest & Appropriate Use of Force Manual (July 2023)
- Exam required — 100% score mandatory to receive Certificate of Completion
- MACCESS INC. is authorized by BSIS to deliver this certification as a licensed Private Patrol Operator, PPO #122729
- This course counts toward your required 3-hour PTA component of the mandatory 8-hour pre-registration training

CORE PRINCIPLE

A California security guard is a PRIVATE CITIZEN with a uniform — not a peace officer.

Your arrest authority comes from the same law that applies to every person on the street — California Penal Code §837.

No additional powers are granted by your uniform, your employer, your BSIS license, or the property owner.

MODULE 2

Citizen Arrest Authority PC §837

The three lawful conditions that authorize a security officer to make a citizen's arrest in California.

Duration: 20 minutes

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CALIFORNIA PENAL CODE §837

The three lawful conditions for a citizen's arrest

1

Public Offense in Your Presence

A public offense (misdemeanor OR felony) is committed or attempted in your direct presence. You must personally witness the crime occur. A hunch, a tip, or surveillance footage alone is NOT sufficient for a misdemeanor arrest.

Example:

PC §837(1)

You observe a person shoplifting. You see an assault in progress. You witness vandalism being committed.

2

Felony Committed by the Person

A felony has been committed and you know the person arrested committed it. The felony need not have been committed in your presence — but it MUST have actually occurred.

Example:

PC §837(2)

A felony has occurred (confirmed fact) and you have direct evidence linking this specific person to it.

3

Reasonable Cause — Felony Only

A felony HAS IN FACT been committed, AND you have reasonable cause to believe this person committed it. This is the highest-risk condition — using it incorrectly creates serious liability.

Example:

PC §837(3)

A felony is confirmed to have occurred. You have objective facts — not just a hunch — linking this person to it.

TYPES OF ENCOUNTERS

Responsibilities and ethics in citizen arrest and types of contact



Voluntary Contact

Person is free to leave at any time. Asking questions, checking ID as condition of entry, verbal interaction. No detention has occurred.

✓ Keep tone professional. Never imply the person cannot leave unless you have a lawful basis for detention.

✗ Do NOT block exits. Do NOT physically restrain without a lawful basis.



Investigative Detention

Brief, reasonable detention to investigate suspicious circumstances. Must be based on specific, articulable facts — not a hunch. Courts limit this to the shortest time necessary.

✓ State your reason clearly. Contact law enforcement promptly. Document everything.

✗ Do NOT conduct searches. Do NOT extend detention beyond what's necessary.



Citizen's Arrest (PC §837)

A formal arrest under one of the three lawful PC §837 conditions. Person is in custody. You MUST notify law enforcement without unnecessary delay under PC §847.

✓ Clearly communicate the arrest. Use only reasonable force. Call law enforcement immediately.

✗ Do NOT hold someone for extended periods. Do NOT interrogate. Do NOT search beyond safety pat.

MODULE 3

Limitations & Prohibited Actions

What security officers are strictly prohibited from doing — and why it matters legally.

Duration: 15 minutes

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WHAT SECURITY GUARDS CANNOT DO

Hard legal limits on authority under California law

Arrest for Unwitnessed Misdemeanor

If you did not personally see a misdemeanor occur, you cannot make an arrest for it. No exceptions.

Hold Beyond Reasonable Time

Courts view 20–30 minutes without police notification as crossing into false imprisonment. Call law enforcement immediately.

Conduct Searches

Guards have NO search authority. Pat-downs for officer safety only — no general searches of pockets, bags, or vehicles.

Use Excessive Force

Force must be objectively reasonable and proportional to the threat. Handcuffs only during a lawful arrest. Weapons only when facing death/serious injury.

Impersonate a Peace Officer

Representing yourself as a police officer is a crime under PC §538d and grounds for immediate BSIS license revocation.

Act Outside Assigned Property

Your authority extends only to the property you are hired to protect. You have no jurisdiction beyond those boundaries.

Detain Without Lawful Basis

Detention based on race, appearance, or 'gut feeling' constitutes false imprisonment. No reasonable suspicion = no lawful detention.

Conduct Interrogations

Interrogating a detained person is a police function. Guards document, observe, and preserve — not question under pressure.

MODULE 4

Security vs. Law Enforcement

The critical distinction between private security personnel and California peace officers.

Duration: 10 minutes

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SECURITY GUARD vs. PEACE OFFICER

Understanding the distinction that protects you legally

CATEGORY	SECURITY GUARD	CALIFORNIA PEACE OFFICER
Authority Source	Penal Code §837 — same as any private citizen	PC §830 et seq. — statutory peace officer authority
Arrest Basis	Must personally witness offense (misdemeanor) or have reasonable cause (felony only)	Probable cause — broader investigative authority
Search Authority	None — no right to search persons, bags, or property	Can conduct lawful searches under 4th Amendment frameworks
Jurisdiction	Only on assigned property / contracted area	City, county, or statewide depending on agency
Investigation Power	Observe, document, and report only	Can investigate, interview, gather evidence, pursue charges
Use of Force	Objectively reasonable force — citizen standard	Peace officer use-of-force continuum with qualified immunity
Impersonation Penalty	Criminal charge under PC §538d + BSIS revocation	N/A — officers cannot impersonate each other in bad faith
Custody Transfer	Must deliver arrested person to police without unnecessary delay (PC §847)	Handles full booking process internally

MODULE 5

Liability — Personal & Employer

Understanding criminal, civil, and administrative exposure from unlawful arrests and detentions.

Duration: 20 minutes

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CRIMINAL & CIVIL LIABILITY

What happens when arrest authority is exceeded

PERSONAL — Criminal

- False Imprisonment (PC §236) — unlawful restraint of a person
- Kidnapping (PC §207) — if restraint involves moving the person
- Battery (PC §242) — unlawful application of force
- Impersonating a Peace Officer (PC §538d) — criminal charge + BSIS revocation

PERSONAL — Civil

- False arrest lawsuit — damages including lost wages, emotional distress
- Intentional infliction of emotional distress
- Invasion of privacy claims
- Punitive damages if conduct was malicious or oppressive

EMPLOYER — MACCESS INC.

- Vicarious liability for guard's wrongful acts committed in scope of employment
- Negligent hiring or training claims if proper BSIS training was not provided
- PPO license jeopardized — BSIS can discipline or revoke PPO license
- Civil judgment can extend to the property owner who hired the PPO

REGULATORY — BSIS

- Guard card suspension or revocation under BPC §480
- Civil penalties under Title 16 California Code of Regulations
- Mandatory BSIS reporting of incidents involving force or arrest
- Training records subject to BSIS audit at any time

MODULE 6

Trespass & Property Law

Security officer authority on private property and the legal basis for ejection and detention.

Duration: 10 minutes

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TRESPASS LAW & PROPERTY AUTHORITY

PC §602 | Open land, private property, public accommodation

Private Property

- Property owner (or authorized agent) can order any person to leave
- Guard acting as agent may demand departure on owner's behalf
- Refusal to leave after lawful order = misdemeanor trespass (PC §602)
- Once order given and refused, PC §837(1) conditions met — arrest may be lawful

Public Property / Places of Public Accommodation

- Greater restrictions on ejection — public has right of access
- Must have specific legitimate reason to remove a person
- Cannot remove based on protected class (race, religion, disability, etc.)
- Security actions subject to civil rights laws — document every action

Private Buildings / Commercial Space

- Owner controls terms of access — lease/contract defines scope
- Guard may enforce posted rules and conditions of entry
- Shopkeeper's Privilege (PC §490.5) — limited merchant detention authority for shoplifting with direct observation
- Detention under §490.5 must be brief and for lawful purpose only

Open Land

- Must be clearly posted or fenced to enforce trespass
- Verbal warnings should be given before detention in most cases
- Agricultural trespass has separate provisions under PC §602
- Document all warnings, times, and responses for legal protection

MODULE 7

Ethics, Communication & Documentation

Professional conduct standards, use of force principles, and proper incident documentation.

Duration: 15 minutes

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ETHICS, COMMUNICATION & DOCUMENTATION

Module 7 | BPC §7583.7 Section 8 | Title 16 CCR §643

PROFESSIONAL ETHICS

- Command presence without aggression — professional demeanor diffuses 80% of situations before they escalate
- Treat every person with dignity regardless of the circumstance
- Never use authority to harass, intimidate, or retaliate
- Bias-free enforcement — race, gender, appearance are never grounds for contact
- Honesty in all reports — falsifying documentation is grounds for termination and BSIS revocation
- Confidentiality — client and incident information is proprietary

COMMUNICATION STANDARDS

- Identify yourself clearly — name, company, purpose of contact
- State your basis for detention plainly and without threats
- Call law enforcement FIRST, then notify your supervisor
- Never make promises about charges, outcomes, or releases
- Radio protocols: clear, concise, documented
- Witness identification — name, contact info, what they observed

DOCUMENTATION

- Complete incident report within 1 hour of event
- Document: date, time, location, description of offense, parties involved
- Record exact words used to announce arrest or request departure
- Photograph scene, injuries, or evidence before anything changes
- Certificate of Completion — retain per Title 16 CCR §643(b)
- PPO must maintain all training records for audit

MODULE 8

Emergency Response & Officer Safety

Recognizing emergencies, appropriate response protocols, and maintaining personal safety at all times.

Duration: 10 minutes

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EMERGENCY RESPONSE & OFFICER SAFETY

Module 8 | BSIS PTA Manual §9–10

Medical Emergency

1. Stop — assess the scene for your own safety first
2. Call 911 immediately — do NOT delay for supervisor approval
3. Provide first aid only to your level of training (CPR/AED if certified)
4. Keep scene clear — designate someone to meet EMS at entrance
5. Document: time of discovery, condition of subject, actions taken

Active Threat / Shooter

1. RUN — if you can evacuate safely, do so immediately
2. HIDE — if unable to run, lock down and barricade
3. FIGHT — as absolute last resort with improvised tools
4. Call 911 — provide: location, number of shooters, direction of movement
5. When law enforcement arrives: hands visible, follow all commands, no sudden movements

Officer Safety Principles

1. Situational awareness at all times — know your exits
2. Threat assessment before any contact with a subject
3. Never put yourself between a subject and an escape route
4. Blood-borne pathogen precautions: gloves for any physical contact
5. Environmental hazards: identify chemical, biological, and physical risks at post

MODULE 9

Knowledge Check & Exam Prep

Review key concepts before the mandatory 100% BSIS examination.

Duration: 10 minutes

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KNOWLEDGE CHECK

Review — all questions are exam-style. Discuss each answer before moving on.

Q1 Under what law does a California security guard derive arrest authority?

 California Penal Code §837 — the same citizen's arrest law that applies to any private person. Not from their BSIS license or employer.

Q2 A guard sees suspicious behavior but does not witness a crime. Can they detain the person?

 Only if there are specific, articulable facts supporting reasonable suspicion — never based on appearance or hunch alone. Pure investigative detentions by guards are legally risky.

Q3 What must a guard do immediately after making a citizen's arrest?

 Notify law enforcement without unnecessary delay and transfer custody — per PC §847. Holding someone without police notification beyond 20–30 minutes risks false imprisonment charges.

Q4 A guard finds drugs on a trespasser during a pat-down. Was the search legal?

 Generally no. Guards have no search authority. A pat-down is only lawful for officer safety during a lawful detention and is limited to feeling for weapons — not a general search.

Q5 What score is required to pass the BSIS Power to Arrest exam?

 100% — a perfect score is required. There is no partial credit. The exam tests knowledge from the DCA PTA & Appropriate Use of Force Training Manual (July 2023).

CUSTODY TRANSFER — PC §847

Step-by-step: what happens after a lawful citizen's arrest

1

Make the Arrest

Lawful PC §837 basis confirmed. Clearly state: 'I am placing you under citizen's arrest for [offense].' Use only reasonable force.

2

Call 911 Immediately

Contact law enforcement without unnecessary delay. Provide: your location, description of subject, nature of offense, and your name and company.

3

Secure the Scene

Hold position. Do not move the subject. Preserve any evidence. Keep witnesses nearby. Limit your own statements until police arrive.

4

Transfer Custody to Officer

When law enforcement arrives, transfer custody. Under PC §847, you are the arresting party — the officer is accepting custody, not re-arresting.

5

Complete Documentation

Complete incident report within 1 hour. Include all witnesses, times, actions taken, words spoken. Submit to supervisor and retain per BSIS requirements.

6

Notify MACCESS INC.

All arrests must be reported to MACCESS INC. management. PPO is required to maintain records and may be required to report to BSIS per BPC §7583.2.

COURSE COMPLETE

Powers to Arrest — BSIS Certification Course

1. Complete the BSIS Power to Arrest exam — 100% score required
2. Retain your Certificate of Completion — your proof of compliance
3. Pair this course with the Appropriate Use of Force (5 hrs) to complete your full 8-hour pre-registration requirement
4. Your PPO (MACCESS INC.) will maintain your training record per Title 16 CCR §643(b)

MACCESS INC.

Private Patrol Operator | PPO License #122729 | BSIS-Authorized Training Provider

Content sourced from BSIS Official Training Syllabus (bsis.ca.gov) | DCA PTA Manual July 2023 | Cal. Penal Code §837, §847 | BPC §7583.7